

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jonathan Hutchinson	Team: Team # 1	CCRB Case #: 201108032	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/18/2011 12:30 AM	Location of Incident: § 87(2)(b) and § 87(2)(b)		18 Mo. SOL 12/18/2012		Precinct: 122
Date/Time CV Reported Tue, 06/21/2011 3:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/21/2011 3:25 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. SGT Justin Farren	04385	930127	122 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Ryan Padell	17005	944870	122 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A . SGT Justin Farren	Abuse: Sgt. Justin Farren authorized the stop of § 87(2)(b)		A . Unsubstantiated		
B . SGT Justin Farren	Abuse: Sgt. Justin Farren authorized the frisk of § 87(2)(b)		B . Exonerated		

Case Summary

On June 21, 2011, § 87(2)(b) a resident of § 87(2)(b) in Staten Island, called the CCRB to file the following complaint. The case was initially assigned to Inv. Wasserman of team one and was reassigned to the undersigned investigator on August 1, 2011.

On June 18, 2011, at approximately 12:30 a.m., § 87(2)(b) was stopped near the intersection of § 87(2)(b) and § 87(2)(b) in Staten Island by Sgt. Justin Farren and PO Ryan Padell of the 122nd Precinct, resulting in the following allegations.

- **Allegation A: Abuse of Authority – Sgt. Justin Farren authorized the stop of** § 87(2)(b)

§ 87(2)(g)

it is therefore recommended that **Allegation A be unsubstantiated.**

- **Allegation B: Abuse of Authority – Sgt. Justin Farren authorized the frisk of** § 87(2)(b)

§ 87(2)(g)

it is therefore recommended that **Allegation B be exonerated.**

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

§ 87(2)(b) is a § 87(2)(b) Caucasian male, § 87(2)(b), with brown hair and brown eyes, who is sight-impaired. At the time of the interview, § 87(2)(b) resided at § 87(2)(b) in Staten Island.

CCRB Testimony:

§ 87(2)(b) was interviewed by Inv. Wasserman at the CCRB on June 28, 2011 (encl. 4a-4e). At approximately 12:30 a.m. on June 18, 2011, § 87(2)(b) was walking home to his residence, at § 87(2)(b) in Staten Island, from the “§ 87(2)(b) deli, located in a strip mall at § 87(2)(b) and § 87(2)(b) in Staten Island. § 87(2)(b) had bought a “Quick Draw” ticket at this deli. He did not interact with anyone after leaving the deli. The street was dimly lit.

§ 87(2)(b) was wearing a white graphic t-shirt, shorts, sneakers, sunglasses and a Zoo York baseball cap with the letters “J Rock” in red lettering. He had a wallet in his front left pocket, a pack of cigarettes and a lighter in his front right pocket and may have had a rag in his back pocket to soak up sweat. As he was walking, he was carrying a pocket-size Samsung camcorder in his right hand (he did not know the model). He was looking at footage he had shot of hip-hop artists earlier that night.

When § 87(2)(b) was on § 87(2)(b) between § 87(2)(b) and § 87(2)(b) he noticed an unmarked sedan, later identified as a police vehicle, slow down. § 87(2)(b) specified that he was in front of § 87(2)(b). The police vehicle approached on § 87(2)(b).

§ 87(2)(b) right side, from behind him. He could not describe the color of this sedan as he is legally blind, but thought it was a Chevrolet Impala. One of the occupants of the car stated, “We’re the police” and § 87(2)(b) replied, “I know.” Two Caucasian male officers in plainclothes, identified by the investigation as PO Padell and Sgt. Farren, exited the unmarked car and asked § 87(2)(b) what he was doing with the camera. § 87(2)(b) described PO Padell as a Caucasian male officer, standing approximately five feet, eight inches tall, with a medium build and gelled-up dirty blond or brown hair, whom he thought was the driver of the police vehicle. § 87(2)(b) was unable to provide a comprehensive physical description of Sgt. Farren, other than describing him as a Caucasian male officer.

§ 87(2)(b) explained to the officers that he was reviewing footage he had shot that night and asked the officers if they wanted to see. § 87(2)(b) showed the footage to one of the officers, who told him to close the camcorder after a second. PO Padell told § 87(2)(b) to put his hands and the item in his hands on the back hood of the car. § 87(2)(b) placed the camera and his hands on the back hood of the car. The officers asked § 87(2)(b) where he was going and he stated that he was going to his home, located two doors down. The officers explained that they had stopped him because he looked suspicious with his camera.

§ 87(2)(b) expressed that he understood that the officers were doing their job. He told the officers that he had an open criminal case and explained that he used to be a drug addict but is now sober. He invited the officers to search him. The officers did not ask § 87(2)(b) if they could search him; § 87(2)(b) volunteered that they could search him, but stated to the CCRB that he expected to be searched anyway.

PO Padell asked § 87(2)(b) if he had anything illegal on him. PO Padell went inside all of § 87(2)(b) pockets, removing the items from his pockets and placing them on the back hood of the car, and also looked inside his socks without removing his sneakers. After PO Padell had started searching § 87(2)(b), § 87(2)(b) stated that he had pepper spray in his right front coin pocket and asked if this was illegal. (In his initial narrative, § 87(2)(b) indicated that the exchange about whether he had any illegal items on his person and his admission that he was carrying pepper spray came prior to the search, but when later asked about the chronology, he stated that this dialogue occurred after the search had begun.) PO Padell stated that carrying pepper spray was illegal and § 87(2)(b) explained that he carries the pepper spray at night because he is legally blind. The officers used their flashlights to look at the items on the back hood. § 87(2)(b) did not recall if PO Padell also patted him down, or just went inside his pockets.

After searching § 87(2)(b) PO Padell asked for § 87(2)(b) identification, which he provided. PO Padell wrote down § 87(2)(b) name in a note pad. § 87(2)(b) did not hear the officers run a warrant check. § 87(2)(e)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

the officers bid him good night and let him go with all his possessions, including the pepper spray. They did not give him a card explaining why he had been stopped.

NYPD Statement(s):

Subject Officer: PO RYAN PADELL

PO Padell is a § 87(2)(b)-old Caucasian male officer, § 87(2)(b), with brown hair and brown eyes. On June 18, 2011, PO Padell worked from 5:30 p.m. to 2:05 a.m. on the following day, for the 122nd Precinct anti-crime team. PO Padell worked with Sgt. Farren; both officers were dressed in plainclothes and were assigned to an unmarked blue Chevy Impala, of which PO Padell was the driver.

Memo Book:

PO Padell's memo book noted that, at 12:30 a.m. on June 18, 2011, one male was stopped at the intersection of § 87(2)(b) and § 87(2)(b) in Staten Island. An unspecified report, identified by the investigation as a UF-250, was prepared for suspected grand larceny (encl. 5c).

UF-250:

The UF-250 prepared by PO Padell to document the interaction with § 87(2)(b) noted that § 87(2)(b) was stopped for suspected grand larceny. PO Padell observed § 87(2)(b) engaged in actions indicative of casing a victim or location, as well as in furtive movements. PO Padell also noted that the area has a high incidence of grand larcenies, at times corresponding to that at which § 87(2)(b) was stopped. The UF-250 confirmed that § 87(2)(b) was frisked after PO Padell observed that he was wearing inappropriate attire, possibly to conceal a weapon. The UF-250 denied that § 87(2)(b) was searched (encl. 5a-5b).

CCRB Testimony:

PO Padell was interviewed at the CCRB on August 15, 2011 (encl. 5a-5h). On June 18, 2011, at approximately 12:30 p.m., PO Padell and Sgt. Farren were patrolling within the confines of the 122nd Precinct. PO Padell stated that the precinct has recently had a high incidence of auto larcenies, specifically near "the train tracks," identified by the investigation as the tracks of the Staten Island Railroad, running alongside § 87(2)(b) in Staten Island, approximately § 87(2)(b) from the incident location. PO Padell observed an individual, later identified as § 87(2)(b) walking in the street, walking close to the vehicles parked on the street and looking inside each vehicle. § 87(2)(g)

§ 87(2)(b) did not stop to look inside any vehicle, but continued walking as he was looking inside vehicles. As the patrol car got closer to § 87(2)(b) PO Padell observed an "open" video camera in his hand, although he was unable to determine whether it was recording. The officers observed § 87(2)(b) for approximately one or two minutes before approaching him. § 87(2)(b) was walking on the side of the street on the driver-side of the patrol car.

PO Padell and Sgt. Farren exited the patrol car, approached § 87(2)(b) and identified themselves as police officers. PO Padell asked § 87(2)(b) where he was going and where he had been coming from, and § 87(2)(b) replied that he was going home. PO Padell asked § 87(2)(b) if he owned the camera, and he informed the officers that the camera belonged to him. PO Padell suspected that he may have stolen the camera from a vehicle, considering his prior

behavior and the time of night. PO Padell requested § 87(2)(b) identification and he provided it. PO Padell requested that § 87(2)(b) approach the police vehicle, which was parked nearby, and he complied. While walking over to the police vehicle, § 87(2)(b) said, “I don’t have anything on me, you can check me.” PO Padell observed a bulge in one of the pockets of § 87(2)(b) pants, although he was unable to specify which pocket.

Based on his training, PO Padell determined that the bulge resembled the outline of a knife. PO Padell also noticed that § 87(2)(b) was keeping one of his hands near the pocket with the bulge, occasionally covering the bulge with his hand, causing PO Padell to fear for his safety. PO Padell frisked the bulge and, when it did not feel like a weapon, did not continue to frisk or search § 87(2)(b). PO Padell did not recall whether he determined what object had created the bulge, which was hard when he felt it, and he did not remove the object, since he was unable to determine that it was a weapon. Sgt. Farren did not make physical contact with § 87(2)(b) during the incident. PO Padell did not recall that § 87(2)(b) was in possession of pepper spray.

Subject Officer: SGT. JUSTIN FARREN

Sgt. Farren is a § 87(2)(b)-old Caucasian male officer, § 87(2)(b), with brown hair and hazel eyes. On June 17, 2011, Sgt. Farren worked from 5:26 p.m. to 2:10 a.m. on the following day, as the 122nd Precinct anti-crime team supervisor. Beginning at 10:51 p.m., Sgt. Farren was assigned to an unmarked silver Chevy Impala, § 87(2)(e), § 87(2)(b), with PO Padell, who was the driver; both officers were dressed in plainclothes.

Memo Book:

Sgt. Farren’s memo book noted (on the fly sheet) that, at 12:30 a.m. on June 18, 2011, § 87(2)(b) was stopped in connection with a possible auto larceny near the intersection of § 87(2)(b) and § 87(2)(b) in Staten Island (encl. 6a-6b).

CCRB Testimony:

Sgt. Farren was interviewed at the CCRB on October 27, 2011 (encl. 6a-6e). § 87(2)(g). On June 18, 2011, at approximately 12:30 a.m., Sgt. Farren and PO Padell were patrolling the confines of the 122nd Precinct when they observed an individual, identified by the investigation as § 87(2)(b) walking next to a line of vehicles that were parallel-parked on § 87(2)(b) in Staten Island. The officers were specifically monitoring the vicinity of § 87(2)(b) and § 87(2)(b) for signs of petit larceny and grand larceny of automobiles. Sgt. Farren stated that many vehicles in the area had recently been robbed, either through unlocked doors or broken windows. Sgt. Farren observed § 87(2)(b) look into the driver-side windows of two separate vehicles parked on the right side of § 87(2)(b) (from the officers’ perspective), immediately before the intersection of § 87(2)(b) and § 87(2)(b).

§ 87(2)(b) was holding an object that was emanating light, and Sgt. Farren assumed that it was a flashlight. The police vehicle was approximately fifty feet behind § 87(2)(b) on the same block of § 87(2)(b) when Sgt. Farren observed him looking into the windows of vehicles. Sgt. Farren stated that his suspicion that § 87(2)(b) was interested in breaking into a vehicle increased when he observed him look into the windows of the second vehicle, since he assumed that the first vehicle could have belonged to § 87(2)(b). His increased suspicion, combined with the pattern of auto larcenies recently occurring in the area, led to Sgt. Farren’s

decision to stop § 87(2)(b) Sgt. Farren also noted that flashlights are often used by individuals who are attempting to break into vehicles, since it is typically dark in the interior of the vehicle.

From inside the police vehicle, PO Padell said, “Excuse me, come here, police,” causing § 87(2)(b) to take two steps away from the police vehicle, in a nervous manner. The police vehicle was approximately twenty feet away from § 87(2)(b) when PO Padell addressed him. The officers exited the vehicle, approached § 87(2)(b) and Sgt. Farren saw that the object which § 87(2)(b) was holding was a video camera, which was turned on. PO Padell asked § 87(2)(b) if he owned the video camera and he said, “Yes,” with a nervous tone of voice, while taking several additional steps backward, away from the officers. PO Padell approached § 87(2)(b) and frisked the outside of his upper body and waistband briefly before informing him that he could leave. Sgt. Farren stated that § 87(2)(b) backing up likely caused PO Padell to fear for his safety, although he refused to speak for PO Padell or presume the factors that led to the frisk of § 87(2)(b). Sgt. Farren verbally obtained § 87(2)(b) information, which § 87(2)(b) provided, and § 87(2)(b) told him that he lived in the area. Following the incident, PO Padell prepared a UF-250 and both officers prepared memo book entries.

Sgt. Farren denied that any aspect of § 87(2)(b) physical appearance indicated that he might have been armed. Sgt. Farren denied seeing PO Padell enter any of § 87(2)(b) pockets, and denied doing so himself. PO Padell may have explained to § 87(2)(b) why he had been stopped. Sgt. Farren did not recall that § 87(2)(b) was in possession of pepper spray.

NYPD Document(s)

- The 122nd Precinct roll call confirmed that Sgt. Farren and PO Padell worked from 5:26 p.m. on June 17, 2011 to 2:10 a.m. on June 18, 2011, and were assigned to anti-crime in § 87(2)(e), § 87(2)(f) (encl. 7a-7c).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of February 16, 2012 with regard to the incident.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]

Civilian(s) CCRB History

- [§ 87(2)(b)] has filed the following CCRB complaints (encl. 2a):

- [§ 87(2)(b)]
[REDACTED]

Subject Officer(s) CCRB History

- Sgt. Farren has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. 1a).

Conclusion

Allegations Not Pled

[§ 87(2)(g)]
[REDACTED]
[REDACTED]
[REDACTED]

Identification of Subject Officer(s)

- Sgt. Farren and PO Padell identified themselves as the two officers present during the above incident, and PO Padell confirmed that he was the officer who made physical contact with [§ 87(2)(b)] at the time of the incident.

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – Sgt. Justin Farren authorized the stop of § 87(2)(b)

It was undisputed amongst the parties interviewed in connection with the investigation that Sgt. Farren and PO Padell approached § 87(2)(b) in part because he was carrying an open video camera. Both officers interviewed stated that they suspected that § 87(2)(b) may have been about to engage in an auto-related larceny. § 87(2)(g)

In *People v. De Bour*, 40 N.Y.2d 210, 213 (1976), the New York State Court of Appeals established that officers must correspond increasing levels of intrusion in street encounters with civilians with increasing levels of suspicion (encl.). Under that rule, officers may direct non-accusatory questions, § 87(2)(g) at civilians if they have “any articulable reason to approach,” as explicated in the NYPD Patrol Guide Insert 344-153, “Street Encounters- Legal Issues” (encl.). To forcibly stop a civilian, § 87(2)(b) an officer must have a reasonable suspicion that the civilian was engaged in criminal activity.

Both Sgt. Farren and PO Padell alleged that they observed § 87(2)(b) looking inside several parked vehicles, in an area with a high incidence of auto-related larcenies, prior to approaching him. PO Padell claimed that he suspected that § 87(2)(b) may have stolen his video camera from a vehicle, while Sgt. Farren stated that § 87(2)(b) movements during the period of questioning may have made PO Padell fear for his safety. § 87(2)(g)

It is therefore recommended that **Allegation A be unsubstantiated.**

Allegation B: Abuse of Authority – Sgt. Justin Farren authorized the frisk of § 87(2)(b)

Although § 87(2)(b) did not recall whether he was frisked, he acknowledged that he volunteered his consent for the officers to search him. § 87(2)(g)

It is therefore recommended that **Allegation B be exonerated.**

Team: 1

Investigator: _____ Jonathan Hutchinson _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date